

Gufran v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 September 2014 · WRIT - C No. - 50541 of 2014 · **Writ disposed; apply under cl. 6.14; recovery stayed four weeks.**

HEADNOTE

A consumer who did not dispute electricity-charge liability, but pleaded financial crisis, was relegated to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005 for instalments. The competent officer was to decide by a reasoned speaking order; coercive recovery was stayed for four weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

Gufran petitioned the Allahabad High Court against recovery proceedings started by the electricity corporation for outstanding electricity charges. Counsel for the petitioner did not dispute the liability and submitted at the outset that, being in financial crisis, the petitioner should be allowed to deposit the dues in instalments. The Standing Counsel appeared for the State and notice was accepted for the corporation. The Court referred to clause 6.14 of the U.P. Electricity Supply Code, 2005, which empowers officers not below Executive Engineer to extend instalments to consumers in financial distress.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Clause 6.14 empowers officers not below Executive Engineer to extend an instalment facility to consumers in financial distress. The petitioner, who did not dispute electricity-charge liability, was given liberty to apply under that clause within one week; the authority was directed to consider and decide any such application by a reasoned speaking order in accordance with law within three weeks, with no coercive recovery for four weeks or until that decision, whichever was earlier. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Writ against electricity-charge recovery disposed by remitting a financially distressed consumer, who did not dispute liability, to the Executive Engineer under cl. 6.14, with a short stay of coercive process pending a speaking order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS SHOULD BE GRANTED ON THE MERITS, AND THE QUANTUM OF DUES

Liability was not disputed; grant of the cl. 6.14 facility was left to the competent officer. ¶ 1